

Channabasamma vs Gurunath Reddy on 30 October, 2023

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NC: 2023:KHC-K:8324

CP No. 200049 of 2023

IN THE HIGH COURT OF KARNATAKA
KALABURAGI BENCH

DATED THIS THE 30TH DAY OF OCTOBER, 2023

BEFORE

THE HON'BLE MRS JUSTICE M G UMA

CIVIL PETITION NO. 200049 OF 2023 (RES)

BETWEEN:

CHANNABASAMMA
W/O GURUNATH REDDY
AGE: 46 YEARS, OCC: PUBLIC RELATION OFFICER,
THERMAL POWER PLANT, YALAHANKA
CHIEF ENGINEER OFFICE O AND M DIVISION
YALAHANKA COMBINED GAS POWER PLANT
SS HALLI DODDABALLAPUR ROAD
YALAHANKA BANGALORE
R/O# 580 GROUND FLOOR, 7TH MAIN
BESIDES DENTAL CLINIC, OPP-GANDHI GRAND,
NEAR HOSAHALLI METRO STATION,
VIJAYANAGAR-560040.

...PETITIONER

Digitally signed by
SHILPA R

(BY SRI MAHANTESH PATIL AND

TENIHALLI
Location: HIGH

SRI PUNEETH MARKAL, ADVOCATES)

COURT OF
KARNATAKA

AND:

GURUNATH REDDY
S/O MUDUKANGOUDA
AGE: 55 YEARS, OCC: AGRICULTURE
R/O ANWARI VILLAGE, TALUK-LINGASUGUR
DIST: RAICHUR-584101.

(SERVED)

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THIS CP IS FILED U/S. 24 OF THE CPC, PRAYING TO THE MC NO. 14/2023 PENDING BEFORE THE PENDING BEFORE THE LEARNED SENIOR CIVIL JUDGE, AT LINGSUGUR, BE WITHDRAWN AND TRANSFERRED TO THE LEARNED PRL. JUDGE FAMILY Court AT BENGALURU.

THIS PETITION COMING ON FOR ADMISSION THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

Though the matter is listed for admission, with the consent of learned counsel for the parties, it is taken up for final disposal.

2. The respondent in M.C.No.14/2023 on the file of learned Senior Civil Judge, Lingsugur (hereinafter referred to as 'Trial Court') has filed this petition under Section 24 of CPC to transfer the same to the Family Court at Bengaluru.

3. The parties are referred to as per their ranking before the Trial Court.

4. Brief facts of the case are that the petitioner filed M.C.No.14/2023 before the Trial Court seeking dissolution of marriage under Section 13(1)(ib) of the Hindu Marriage Act.

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5. It is stated that she is working as Public Relation Officer at Thermal Power Plant at Yelahanka, Bengaluru. She is having a son, who is pursuing his degree in B.E. at Bengaluru and she is facing inconvenience in attending the Court at Lingsugur. Therefore, prayed for transfer of the case from Lingsugur to Family Court at Bengaluru.

6. It is stated that the respondent is an agriculturist and even if this petition is allowed, he will not be affected or prejudiced.

7. Heard learned counsel Sri Puneeth Markal for the petitioner. The respondent remains absent in spite of service of notice.

8. Perused the materials on record. The following point would arise for my consideration:

"Whether the petitioner has made out any ground to allow the petition"

My answer to the above point in 'Affirmative' for the following:

NC: 2023:KHC-K:8324 REASONS

9. As per the petition averments, the respondent/wife is working as Public Relation Officer at Thermal Power Plant, Yelahanka, Bengaluru and she is staying with her son, who is pursuing his education at Bengaluru. It is stated that the petitioner and the respondent have married on 23.05.1998. It is stated that only for a period of three years they led marital life and thereafter they are residing separately. In spite of service of notice, the respondent has not chosen to contest the petition.

10. Considering the grounds made out in the petition, I am of the opinion that M.C.No.14/2023 pending on the file of Senior Civil Judge at Lingsugur could be transferred to the Family Court at Bengaluru for disposal in accordance with law. Accordingly, I answer the above point in the affirmative and proceed to pass the following:

ORDER

(i) The petition is allowed.

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(ii) M.C.No.14/2023 now pending on the file of learned Senior Civil Judge at Lingsugur is ordered to be transferred to the Family Court at Bengaluru, for disposal in accordance with law, with immediate effect.

(iii) Both the parties shall appear before the Family Court at Bengaluru on 24.11.2023 at 11.00 a.m., without waiting for issuance of fresh summons.

(iv) Registry to communicate the order to both the Courts for necessary action.

Sd/-

JUDGE SRT CT-VD